

Personal appearance and appearances via ZOOM are available.

**UPDATE Probate Calendar for Friday, September 4, 2026
9:00 a.m. in Department Paso 2, with Judge Michael C. Kelley presiding**

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR/ DISMISSED/ TERMINATED or CONTINUED:</u>				
11	26PR-0140	Conservatorship of: Ricardo Arroyo Hernandez	Petition Filed 04/20/2026 - Conservatorship - Person	CONTINUED LIST: *UPDATED* <i>The matter is continued to December 18, 2026 at 9:00 a.m. in P2. All additional information is due by November 13, 2026. The following is noted:</i> 1. <i>A supplement was filed May 28th. The Supplement indicates the number on the address for the Petitioner was missing one digit. It is noted that this error was reflected on the addresses of five other necessary parties. As such, it appears the proof of service filed on April 22, 2026 for this hearing date was not properly served on a number of people. Amended Notice of Hearing and proof of service will be needed. The proof of service filed on September 2, 2026 includes the new address, but is backdated to the original April 22, 2026 service date and the declaration is signed back on April 22, 2026 as well. It is unclear what the declarant, Ms. Knoll, is trying to indicate by this declaration. Did the document served on April 22, 2026 contain the incorrect addresses as previously indicated? Or were the addresses all</i>

				<i>accurately served that date? It is unclear why this proof of service was just filed on Sept. 2nd. The Supplement filed on May 28th only indicates the address was incorrectly stated but provides no other information. It is unclear how the September 2, 2026 proof of service declaration could have been signed on April 22, 2026, showing the correct addresses based on the balance of the file.</i> <i>2. The Court Appointed Attorney Report has not yet been received.</i> <i>3. At the next hearing, the proposed conservatee must appear to receive the warnings under Probate code section 1828. (Prob. Code, § 1825.)</i> <i>4. If the petition is approved, it would not be effective and letters would not issue until March 24, 2027.</i>
14	26PR-0243	In Re: Timothy Margetts	Minors Compromise Filed 07/08/2026	CONTINUED LIST. <i>The Petition is continued to November 6, 2026 at 9:00 a.m. in P-2. All additional items must be filed by October 9, 2026. The following is noted:</i> <i>1. Item 8 of the Petition is incomplete. One of the boxes must be checked. Additionally, Attachment 8 was not located.</i> <i>2. Item 10 of the Petition indicates that the total amount offered by defendant to settle the claim is \$1,658.33. Item 10c indicates that the parties have agreed to the amount of \$2,500.00, and item 16 also indicates that the gross amount of proceeds of settlement is \$2,500.00. Clarification is needed. Additionally, Item 10c indicates that the terms of the settlement are</i>

				<i>continued onto Attachment 10c. Attachment 10c was not located.</i> <i>3. Item 14 of the Petition indicates that Petitioner is requesting reimbursement for fees and expenses paid in the amount of \$841.67. Proof of the fees and expenses incurred and the payments made were not included.</i> <i>4. Item 17e of the Petition indicate that the attorney is representing or employed by any other party or any insurance carrier involved in the matter. Attachment 17e identifying the party or carrier and explaining the relationship was not located.</i> <i>5. Item 23 of the Petition is incomplete. It is unclear if all the intended attachments are included.</i> <i>6. Attachment 18b(5) to the Petition and the Declaration filed July 8, 2026 indicate that Jacob Margetts has been appointed as guardian ad litem. There does not appear to be a pending civil lawsuit or application and order for guardian ad litem filed. No guardian ad litem appears necessary under Probate Code section 3500. Clarification is needed.</i> <i>7. Petitioner is requesting the funds be paid directly to Petitioner. It appears this request falls under Probate Code section 3401, but counsel did not provide the required written assurance verified by the oath of the parent that the total estate of the minor does not exceed \$5,000. The conditions of Probate Code section 3401 are not satisfied. A blocked account is</i>
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				<i>recommended in lieu of payment to the parent directly.</i> 8. <i>At the next hearing, the minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952.</i>
<u>APPROVED LIST</u>				
1	18PR-0391	Estate of: Alfred Andreoli	Status Report Filed 8/5/26	APPROVED LIST: <i>It is recommended the Court approve the Status Report filed on August 5, 2026. The next Status Report or Petition for Final Distribution is set for December 17, 2027 at 9:00 a.m. in P-2. All additional materials must be filed by November 19, 2027. A proposed order is needed.</i>
6	25PR-0266	Estate of: James Martin	Petition Filed - 4/14/2026 - Final Distribution	APPROVED LIST: <i>*UPDATE* The matter is approved, subject to submission of waivers of service of Notice of Hearing of the Supplement, which appears to be an Amendment under California Rule of Court, rule 7.3, as it adds an asset on hand for distribution not included in the original Petition. (Cal. Rules of Ct., rule 7.53.) The proposed order will not be signed until the waivers arrive from all parties.</i>
<u>HEARING LIST</u>				
2	20PR-0029	Guardianship of: Madden Adams	Petition Filed 4/29/2026 - Petition for Termination of Guardianship	HEARING LIST: <i>*UPDATE* Zoom or personal appearance is required. The following issues are noted:</i> <i>1. Notice of Hearing has not been provided. See Probate Code section 1460. It is noted the guardian does not appear to waive notice of the Petition based on the Objection filed. In addition to the Guardian, other parties must be</i>

				<i>served pursuant to Probate Code section 1460, subsection (b)(5) as this is a Termination Petition.</i> <i>2. An Objection has been filed.</i>
3	20PR-0029	Guardianship of: Madden Adams	Petition Filed 7/7/2025 - for Visitation; cont'd 10/24/25, 1/30/26 & 5/1/26	HEARING LIST: *UPDATE* Zoom or personal appearance is needed. An Objection was filed.
4	25CVP-0111	Maria Rosas vs. Joseph Fasso Smith	Minors Compromise Filed 4/01/2026; Cont'd 5/8/26	HEARING LIST: <i>The minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952. The following is noted:</i> <i>1. Attachment 11c, the terms of the settlement, is not attached to the Petition.</i> <i>2. If the matter is approved, the Court will also set an OSC re: Proof of Deposit for October 16, 2026, at 9:01 a.m. in P-2. The funds are to be distributed directly into a blocked account at Community West Bank in Bakersfield.</i>
5	25CVP-0111	Maria Rosas vs. Joseph Fasso Smith	Status Conference Cont'd 5/8/26	HEARING LIST: Zoom or personal appearance is required.
7-8	25PR-0343	Guardianship of: Mahmoud Rezk	(7) Petition Filed 10/13/2025 - Guardianship PERSON; Cont'd 2/27/26 & 5/29/26 (8) Petition Filed 10/13/2025 - Special Immigration Juvenile	HEARING LIST: Zoom or personal appearance is required. The following issues remain from the last hearing: <i>1. (7) Guardianship Petition.</i> <i>a. Proof of service of Notice of Hearing and service of a copy of the Petition has not been met as required by Probate Code section 1511. It is noted that a Request to Dispense with Notice has been filed. As discussed at the last</i>

			Findings; Cont'd 2/27/26 & 5/29/26	<i>hearing, a Declaration of Due Diligence, or proper notice, is needed.</i> 2. (8) Custody Petition. a. <i>Proof of service of Notice of Hearing on the other custody petition was not located as required by California Rules of Court, rule 7.1020. It is noted that a Request to Dispense with Notice has been filed. As discussed at the last hearing, a Declaration of Due Diligence, or proper notice, is needed.</i>
9	25PR-0348	In Re: MAXIMILIANO PALAFOX	Order to Show Cause re Dismissal	HEARING LIST: *UPDATE* Zoom or personal appearance is required. The following issues are noted regarding the Amended Petition filed on April 24, 2026. The Sept. 2, 2026 Declaration is noted, but as indicated in the original Probate Note, the April 24, 2026 Amendment contains the following issues that need to be addressed. 1. <i>Item 1 of the Amended Petition names Petitioner as minor's guardian ad litem. No guardian ad litem has been appointed in this case. It is noted Petitioner is now listed as a grandparent of the minor, not a parent. Petitioner is not authorized to compromise the matter under Probate Code section 3500. A guardian ad litem application and order is needed.</i> 2. <i>Item 17f of the Amended Petition does not specify the expected dates of payment for the attorney's fees in addition to that requested in this Petition. Clarification is needed.</i>
10	25PR-0349	In Re: Janelle Sandoval	Order to Show Cause re Dismissal	HEARING LIST: *UPDATE* Zoom or personal appearance is required. The following issues are noted regarding the Amended Petition filed on April 24, 2026.

				<i>The Sept. 2, 2026 Declaration is noted, but as indicated in the original Probate Note, the April 24, 2026 Amendment contains the following issues that need to be addressed.</i> <i>1. Item 1 of the Amended Petition names Petitioner as minor's guardian ad litem. No guardian ad litem has been appointed in this case. It is noted Petitioner is now listed as a grandparent of the minor, not a parent. Petitioner is not authorized to compromise the matter under Probate Code section 3500. A guardian ad litem application and order is needed.</i> <i>2. Item 17f of the Amended Petition should be reviewed for accuracy as it currently indicates that the attorney does not expect to receive attorney's fees in addition to that requested in this Petition. It appears that a related Minor's Compromise for Maximiliano Palafox is being heard this date, and Petitioner's counsel has requested attorney's fees for that matter. In addition, there are two minors listed in 17f of this Petition, although the expected date of payment is not provided.</i>
12	26PR-0141	Conservatorship of: Jay Ott	Petition Filed 04/21/2026 - Conservatorship of Person & Estate	HEARING LIST: <i>Zoom or personal appearance is needed to discuss the status of the case and next steps.</i> <i>1. A Capacity Declaration is needed. Materials in the file indicate an evaluation may be occurring this month. An update is needed.</i> <i>2. An Objection was filed. An evidentiary hearing will be needed once the above issue is resolved in one way or another.</i> <i>3. Finally, it recommended the Court nunc pro tunc a set of minutes from May 22, 2025 which</i>

				<i>it appointed Lauren Butterfield as a “professional fiduciary” and ordered a “temporary guardianship”. At the same hearing on May 22, 2025, the Court continued the conservatorship matter for additional briefing on the issue of temporary conservatorship appointment, which was determined by the ruling/ Miscellaneous minute order dated June 17, 2026. The entries in the minutes noted above appear to be typos, as guardianship was never at issue and the Court made no appointment of anyone on May 22, 2026. As such, it is recommended the record be corrected.</i>
13	26PR-0226	In Re: ULISES ORTIZ	Minors Compromise	HEARING LIST: <i>The matter is recommended for approval. The minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952.</i>
15	26PR-0224	Guardianship of: Audrey Valenzuela & Greer Valenzuela	Petition Reconsideration Hearing	HEARING LIST: <i>Zoom or personal appearance is required. It is noted that two Proofs of Personal Service were filed on August 3, 2026 indicating service on both of the minors. However, it is unclear if the minors were served with Notice for this hearing date as a Notice of Hearing was not located in the file. Additionally, it appears the father still has not been served.</i>

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).

- a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).

2. **Emails must contain:**

- a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
- b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
- c. **Reason for Request.**
- d. **No Attachments.**

3. **Further, email inquiries must conform to the following guidelines:**

- a. Questions must be from an attorney or party on the case.
- b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
- c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
- d. Emails may only inquire into *clarifications* regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
- e. Emails advising the Court of possible oversights may be sent.
- f. **Continuances may not be requested via the probate email address.**

4. **This email procedure is NOT to be utilized for:**

- a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
- b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
- c. Confirmation that documents have been reviewed.

5. **Response Time.** All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.